

Addendum Date: July 17, 2026 Emory Woods Apartments Ltd ["Management"] ☐ as Owner of ☒ as Agent for the Owner of Emory Woods
["Community Name"] enters into this Smoke Free Addendum to the Apartment Rental Contract with Abigail Eum

Apt. No. 10 located at 2057 Powell Lane, Decatur, GA 30033 ["Resident"], pertaining to
[Address]. This addendum is part of the Apartment Rental Contract dated July 15, 2026 [Date of Lease].

This addendum is a legal contract. Resident acknowledges that a violation could lead to termination of Resident's lease or Resident's right to continue living in the apartment. If Resident or someone living in or visiting the apartment is a smoker, Resident must carefully consider whether he or she will be able to abide by the terms of this contract.

1. Resident's Disclosure of Smokers or Non-Smokers.

☒ Neither Resident nor anyone else who will be living in the apartment is a smoker.

☐ Someone who will be living in the apartment is a smoker; however, Resident agrees to follow Management's no-smoking policy.

2. Resident Is Prohibited from Smoking Inside Any Apartment or Apartment Building. Resident is prohibited from using all forms of lighted or burning tobacco products and smoking of tobacco products inside any apartment, apartment building, Management/Leasing office, or interior of any portion of the apartment community is strictly prohibited. The prohibition on use of any lighted or burning tobacco products or smoking of any tobacco products extends to all residents, their occupants, social guests, invitees and all others who are present on or in any portion of the apartment community. The no-smoking policy and rules extend to, but are not limited to, the management and leasing offices, building interiors and hallways, building common areas, apartments, club house, exercise or spa facility, tennis courts, all interior areas of the apartment community, commercial shops, businesses, and spaces, work areas, and all other spaces whether on the interior of the apartment community and enclosed spaces on the surrounding community grounds. Smoking of non-tobacco products which are harmful to the health, safety, and welfare of other residents is also prohibited by this addendum and other provisions of the Lease inside any apartment or building.

3. Resident May Be Allowed to Smoke Outside of Buildings Under Certain Conditions. Smoking is permitted only in specially designated areas outside of the buildings of the apartment community. Other areas outside the building on the grounds or common areas may be designated as non-smoking areas by signs. Smoking is strictly prohibited in any outside areas that we designate as no-smoking either by appropriate signage or by written notice to you.

Smoking outside of apartments and apartment buildings is prohibited or allowed as follows:

Smoking on balconies, patios, and limited common areas attached to or outside of your apartment and buildings ☐ is ☒ is not permitted.

Smoking in the following described outside and common areas or grounds ☐ is ☒ is not permitted: _____

The following outside areas of the community may be used for smoking: _____

Even though smoking may be permitted in certain limited outside areas, Management reserves the right to direct the Resident and Resident's occupants, family, social guests, and invitees to cease and desist from smoking in those areas if smoke is entering the apartments or buildings or if it is interfering with the health, safety, or welfare or disturbing the quiet enjoyment, or business operations of Management, other residents, or guests.

4. Resident's Liability and Responsibility for Damages and Cleaning. Resident is responsible for payment of all costs and damages to the apartment, other residents' apartments, or any other portion of the apartment community for repair, replacement, or cleaning due to smoking or smoke related damage caused by Resident or Resident's occupants, family, guests, or invitees, regardless of whether such use was a violation of this addendum. Any costs or damages we incur related to repairs, replacement, and cleaning due to your smoking or due to Resident's violation of the no-smoking provisions of the Lease Contract are in excess of normal wear and tear. Smoke related damage, including but not limited to, the smell of tobacco smoke which permeates sheetrock, carpeting, wood, insulation, or other components of the apartment or building is in excess of normal wear and tear in our smoke free apartment community.

5. Resident's Responsibility for Loss of Rental Income and Economic Damages Regarding Other Residents. Resident is responsible for payment of all lost rental income or other economic and financial damages or loss to us due smoking or smoke related damage caused by Resident or Resident's occupants, family, social guests, or invitees which results in or causes other residents illness or discomfort, causes other residents to vacate their apartments, results in disruption of other residents' quiet enjoyment, or adversely affects other residents' or occupants' health, safety, or welfare.

6. Definition of Smoking. Smoking refers to any use or possession of a cigar, cigarette, or pipe containing tobacco or a tobacco product while that tobacco or product is burning, lighted, or ignited, regardless of whether the person using or possessing the product is inhaling or exhaling the smoke from such product. The term tobacco includes, but is not limited to, any form, compound, or synthesis of the plant of the genus *Nicotiana* or the species *N. tabacum* which is cultivated for its leaves to be used in cigarettes, cigars, or pipes. Smoking also refers to use or possession of burning, lighted, or ignited non-tobacco products if they are unlawful, noxious, offensive, unsafe, unhealthy, or irritating to other persons.

7. **Lease Termination for Violation of the Addendum.** Any violation of the no-smoking policy is a material and substantial violation of this addendum and the lease. Management has the right to terminate Resident's lease or right of occupancy of the apartment for any violation of this No-Smoking Addendum. Violation of the no-smoking provisions is a material and substantial default or violation of the lease. Despite the termination of Resident's lease or right of occupancy, Resident will remain liable for rent through the end of the lease term or the date on which the apartment is re-rented to a new occupant, whichever comes first. Resident shall be responsible for payment of rent after he or she vacates the leased premises even though he or she is no longer living in the apartment.
8. **Extent of Resident's Liability for Losses Due to Smoking.** Resident's responsibility for damages, cleaning, loss of rental income, and loss of other economic damages under this No-Smoking Addendum are in addition to, and not in lieu of, Resident's responsibility for any other damages or loss under the Apartment Rental Contract or any other addendum.
9. **Resident's Responsibility for Conduct of Occupants, Family Members, Social Guests, and Invitees.** Resident is responsible for communicating this community's no-smoking policy and for ensuring compliance with this addendum by Resident's occupants, family, social guests, and invitees.
10. **There Is No Warranty of a Smoke Free Environment.** Although Management prohibits smoking in all interior parts of the apartment community, there is no warranty or guaranty of any kind that Resident's apartment or the apartment community is smoke free. Smoking in certain limited outside areas is allowed as provided above. Enforcement of the no-smoking policy is a joint responsibility which requires Resident's cooperation in reporting incidents or suspected violations of smoking. Resident must report violations of our no-smoking policy before Management is obligated to investigate and act, and Resident must thereafter cooperate in prosecution of such violations.

Emory Woods Apartments Ltd

Name of Owner or Management Company

By: _____
Signature of Management Representative

As: _____ (Title)

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature

